

Court No. - 39

Case :- WRIT - C No. - 13420 of 2021

Petitioner :- Ashok Kumar Gupta

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Rajesh Yadav

Counsel for Respondent :- C.S.C.

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Mrs. Sadhna Rani (Thakur),J.

No-one has put in appearance on behalf of the petitioner.

Learned Standing counsel for the State-respondents are present.

It appears that the notice of the writ petition has not been given to the counsel of respondent Nos.2 & 3. namely Purvanchal Vidyut Vitran Nigam.

Learned counsel for the petitioner is directed to serve the notice upon the counsel appearing for the respondent Nos.2 & 3.

Let this matter be posted as fresh after three weeks.

Order Date :- 29.6.2021

Himanshu

Court No. - 39

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Petitioner :- Ashok Kumar Gupta

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Rajesh Yadav

Counsel for Respondent :- C.S.C.

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Mrs. Sadhna Rani (Thakur),J.

The notice has been given to Sri Chetan Chatterjee, learned counsel for the respondent no. 3. His name is not shown in the cause list.

Office is directed to list this matter as fresh on 28th July, 2021 showing the name of Sri Chetan Chatterjee, from the side of respondent no. 3.

Order Date :- 23.7.2021

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Court No. - 39

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Petitioner :- Ashok Kumar Gupta

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Rajesh Yadav

Counsel for Respondent :- C.S.C.,Chetan Chatterjee

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Mrs. Sadhna Rani (Thakur),J.

Heard learned counsel for the petitioner and Sri Chetan Chatterjee learned counsel for the respondents.

The petitioner herein is raising a dispute with regard to the electricity bill with the assertion that neither the petitioner nor any of his family member had applied for electricity connection with regard to the premises in question. Nor any such electricity connection has been installed therein.

As the dispute raised in the present writ petition is factual in nature, we find that the appropriate course of action for the petitioner is to approach respondent no. 3 namely the Executive Engineer/Sub-Divisional Officer, Purvanchal Vidhyut Vitaran Nigam Limited Electricity Distribution Division-V, Azamgarh Region, Azamgarh by invoking the provision of Clause 6.5 of the U.P. Electricity Supply Code, 2005.

In case, such an application is filed within a period of three weeks alongwith the copy of this order, the respondent no. 3 shall be under obligation to take an expeditious decision, in accordance with law. The plea of the petitioner for settlement of the dues in one time settlement scheme, if raised, shall also be duly considered.

The writ petition is, accordingly, **disposed of**.

Order Date :- 28.7.2021

Brijesh